South Africa's Negotiated Transition: Democracy, Opposition, and the New Constitutional Order

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1. A DEMOCRATIC TRANSITION TO DEMOCRACY?

Few seasoned observers of South African politics ever expected to see Nelson Mandela inaugurated as the country's president. When this happened in May 1994, it was clearly a major democratic achievement. The April elections caught the world's imagination. Democrats everywhere applauded as the apartheid regime began fading into history and the African National Congress took over the reins of power. In a country and on a continent where democracy has seldom fared well historically, the achievement seemed all the more remarkable. In an astonishingly short time South Africa had been transformed from a pariah nation, vilified around the world, into a progressive multicultural democracy, identified in the Western press as a model throughout Africa and a symbol of hope for struggling democratizers elsewhere.[1]

No less noteworthy than the result was the process that led to it. Despite considerable violence, there was no civil war or military coup and the cooperation

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among the players whose cooperation was needed was impressive. Starting in 1990, following the National Party (NP) government's decision to release all political prisoners, legalize all opposition parties, and begin genuine negotiations with them on the shape of a new South Africa, it was clear that genuine change was in the offing. Multiparty negotiations for a new constitution seemed to exemplify both the letter and the spirit of a democratic transition to democracy. Even when the all-party CODESA[2] negotiations failed and were replaced by more circumscribed elite negotiations, the fact that the entire process commanded agreement among the principal players was heralded as an encouraging portent.

The widespread popular enthusiasm for South Africa's democratic transition is in line with much recent commentary in political science. Negotiated transitions to democracy are seen as desirable, if not necessary for democratic survival. "Pacts are not always likely or possible," O'Donnell and Schmitter tell us, "but where they are a feature of the transition they are desirable—that is, they enhance the possibility that the process will lead to a viable political democracy."[3] "How were democracies made?" asks Huntington of the "third wave" of democratic transformations between 1974 and 1990. His answer is that they "were made by the methods of democracy; there was no other way. They were made through negotiations, compromises and agreements."[4] Przeworski reiterates the view that democracy "cannot be dictated; it emerges from bargaining."[5] From the vantage point of these views, South Africa is a textbook case of a well-crafted transition; despite fits and starts, the principals made no serious mistakes and shepherded the country safely through its first democratic elections.

The worldwide attention to the South African transition, and to transition negotiations elsewhere, has not been matched by scrutiny of what parties to the transition negotiations agree to or why. Yet there are serious questions as to whether constitutional orders that emerge from negotiations facilitate democratic politics in the medium term. In particular, South Africa's transitional constitution lacks a system of opposition institutions that any healthy democracy requires. Although terms such as group rights, consociationalism, and minority vetoes are anathema in the South African political vocabulary, the political order that has been created is consociational in many critical respects; as such, it is designed to give every powerful player a say in government. The electoral system, the rules of parliamentary control, and the powers and composition of the cabinet and the executive all reinforce this reality. The result is that there are no powerful actors to play the role of "loyal" opponents to the new government and its policies. A system designed to involve every player of political consequence in government leaves no institutional space for a loyal opposition.

In this article we examine the disquieting possibility that the new South Africa's lack of these basic ingredients of a viable democracy is due to the transition's having been negotiated between reformers in the NP government and the moderate leadership of the African National Congress (ANC). We explore and

evaluate the conjecture that the dynamics of negotiated transitions like that of South Africa make it virtually impossible for the principal players to converge on an agreement that provides for effective opposition forces in the new democratic order. If our analysis is persuasive, then it leads to the conclusion that although the interim constitution may well have been the best possible device to end apartheid without a civil war, it should not be replicated in the permanent constitution.[6] This means that the advice of such analysts as Arend Lijphart, who makes the contrary recommendation, should be ignored.

The reasons for our conclusion are elaborated in section 8. In the next two sections, we discuss the nature and value of strong opposition institutions in a democracy and the types of political systems that tend to sustain them. In section 4, we describe what was agreed to in the South African negotiations in this regard. This is followed, in section 5, by a conjecture about dynamics of negotiated transitions; in section 6, we explain how these dynamics appear to have played out in South Africa. Section 7 elaborates on our conjecture by reference to similar negotiated transitions elsewhere in the world, although we do not attempt a systematic test of it. Whether or not our account of the dynamics of transitions can be developed into a general theory is a question for another day. Our discussion of the defects of the interim constitution and our recommendations for the final constitution are not, in any case, dependent on it.

2. POLITICAL OPPOSITION AND DEMOCRATIC POLITICS

In 1965, Dahl remarked that

> of the three great milestones in the development of democratic institutions—the right to participate in governmental decisions by casting a vote, the right to be represented, and the right of an organized opposition to appeal for votes against the government in elections and in Parliament—the last is, in a highly developed form, so wholly modern that there are people now living who were born before it had appeared in most of Western Europe.[7]

He might perhaps have added that opposition is also the milestone that has been least studied by contemporary political scientists. Since the 1950s, the subject of representation has received substantial attention from figures as different as Sartori and Pitkin, but opposition is scarcely mentioned in either of their works.[8] The rational choice tradition since Arrow has also been centrally concerned with problems of representation, focusing on the difficulties involved in devising rules that can aggregate preferences in a meaningful way. As its name suggests, the participatory tradition sought to shift attention from representation to participation, but one can search the works of Pateman and Barber without finding any more attention to the subject of opposition than is contained in those of Buchanan and Tullock or Riker.[9]

Considering the importance of opposition in democratic politics, this is a surprising state of affairs. One need not go all the way with Barrington Moore,

for whom the central defining characteristic of a democratic political order is "the existence of a legitimate and, to some extent, effective opposition," to hold that a functioning political opposition is essential to democracy. Although the notion of a loyal opposition finds its origins in monarchical rather than democratic politics, democratic systems rely on institutionalized oppositions, and it is doubtful that any regime could long survive as minimally democratic without them.[10]

This is true for at least three related reasons. The first is functional, having to do with the peaceful turnover of power by governments that lose elections. Huntington identifies peaceful turnover as the sine qua non of democratic politics. Although one might not want to go all the way with him in regarding it as sufficient, he is surely right that it is necessary.[11] If democratic politics is seen as requiring at a minimum that there be turnover of power among elites, then there must be sites for counterelites to form and campaign as potential alternative governments. Such opposition requires both the permissive freedoms of speech and association, and the presence of institutions and practices that make it possible for counterelites to organize and inform themselves so as to be able to contest for power. An organized parliamentary opposition, a shadow cabinet, access to security briefings, and civil service support are all necessary for an opposition to be perceived as a realistic alternative to the government of the day. If the opposition is not thus perceived, then the possibility of turnover is diminished and crises for the government are correspondingly more likely to become crises for the democratic regime.

This suggests a second reason why opposition institutions matter: for the legitimacy of the democratic political order. Providing the institutional space for opposition is essential for ensuring that discontent and dissatisfaction can be directed at particular governments rather than at the democratic regime itself. As Przeworski has argued, if we think of a democracy as, among other things, "a system for processing conflicts," it is important that those who lose particular political battles do not forfeit the right to criticize and compete against the government, to try to influence legislation and the bureaucracy, and to seek recourse through the courts.[12] Unless there are such institutional outlets for dissent within the regime's institutions, those who are discontented with the status quo may not even distinguish the government from the regime, undermining the possibility of the ebb and flow of competitive party politics that democracies require.

Last, institutional arrangements that facilitate loyal opposition perform important public-interest functions in democracies. They are necessary to ensure the presence of healthy political debate. They encourage competition over ideas among elites and counterelites, and this leads to demands for reason giving and coherence in public debate. Beyond this, opposition institutions empower groups and individuals who have an interest in asking awkward questions, shining light in dark places, and exposing abuses of power. Without an organized political

opposition that has rights to information and other resources, governing in secret becomes all too tempting for the administration of the day. Governments always have incentives to camouflage mistakes or controversial decisions that might threaten their popularity and to misuse the perquisites of office. Unless their members know that they can be called to public account for their actions, the temptation to act on these incentives will in many cases prove irresistible.

3. THE OPPOSITION/NON-OPPOSITION CONTINUUM

Although the principal alternative to democratic systems that institutionalize opposition may be authoritarian systems that repress it, many systems of government are designed to channel dissent and opposition away from national political institutions and otherwise to diffuse it. Such systems are usually defended on the grounds that disagreements in the society in question are so potentially explosive that anything else will result in the war of all against all. Many orthodox prescriptions for "divided" societies—those in which unbridgable divisions among the population are thought to preclude pluralist politics—take this form. Perhaps the best known of these is Lijphart's consociational model of minority vetoes and enforced coalitions, which might be thought of as occupying a position at the far end of a democratic continuum from the opposition model just sketched.[13]

Consociational models of democracy emphasize participation and representation to the virtual exclusion of opposition. Their organizing principles are proportionality in the electoral system, an institutional structure that forces power sharing and a system of mutual vetoes among "a cartel of elites,"[14] and a predisposition toward robust federalism that is intended to insulate territorially based minorities from the power of whoever controls national political institutions. Advocates of consociational democracy contend that particularly when societies are deeply divided along ethnic lines, if democracy can be realized at all, it will be only if the effects of majority rule are mitigated by institutional devices of this sort. The assumption is that ethnic divisions so completely overdetermine other conflicts, and that they are so intense and enduring (if not primordial), that the only viable institutional recipe is one that is designed to minimize political competition and keep the different groups from getting at one another's throats.

Consociational systems undermine the functional, legitimacy-generating, and public-interest roles of opposition discussed in section 2. With regard to the first, consociational systems are not designed to foster alternation of major parties in power. Instead, they permit the same combination of elites to entrench themselves at the peaks of spoils and patronage hierarchies more or less continuously. The democratic benefits that can accrue from "tossing the rascals out" are unavailable. On the legitimacy front, since consociational arrangements ensure that every major political player is part of the government, there is little basis for the disaffected to differentiate the government from the regime. This makes it hard

for an ethos of loyal opposition to develop since it has no institutional outlet.[15] Those who are not in government are removed from politics altogether, making it more likely that they will turn to extrainstitutional politics if they can. With regard to the public-interest role of opposition politics, consociational systems do not give powerful parliamentary players incentives to keep government honest by shining light in dark corners. Because consociational systems require high levels of consensus among governing elites, the only way for anyone in the governing elite to get their way on issues that matter intensely to them is to give other powerful players what they want on issues that matter intensely to them. Therefore mutual vetoes can be expected to lead to mutual logrolling, rather than to political confrontations among elites, and to promote insider clubism. By the same token, logrolling minimizes the likelihood that government elites will be called to account by members of potential alternative governments. In short, consociational systems, based on the politics of elite coalitions, maximize representation and participation in government, but at the price of abandoning a viable opposition politics.

The position of a regime along the opposition/non-opposition continuum depends on the electoral system and on divisions of power within the legislature and between the legislature and the executive. First-past-the-post electoral systems based on single-member districts are likely to produce two-party systems and, as a result, strong parliamentary oppositions.[16] These oppositions may or may not have the potential to become alternative governments (depending on their potential grassroots support). Nonetheless, they will have an interest in becoming magnets for antigovernment sentiment that should give them incentives to perform at least some of the functions of loyal oppositions: organizing and channeling dissent, disseminating information, and exposing government corruption. Thus although two-party-dominated plurality systems have high barriers to entry and are comparatively unrepresentative, they produce significant institutionalized opposition.

Things will be less predictable in multiparty systems dependent on coalition governments. Given the propensity of proportional representation (PR) to produce party fractionalization, particularly when constituencies are large and thresholds are low,[17] unconstrained PR makes parliamentary structure unpredictable. It may produce strong opposition coalitions and alternation in government, as is sometimes the case in Israel and the Netherlands. In other circumstances, such as those in Austria and Switzerland, the major parties will often govern in coalition. Given the unpredictability of unconstrained PR versus the predictability of first-past-the-post plurality systems in generating two-party politics, one would not choose the former over the latter if the goal were to produce oppositional parliamentary politics.

Whether a system is presidential or parliamentary also affects the prospects for institutionalized opposition. Parliamentary systems link the fortunes of the execu-

tive to those of the majority party in Parliament, suggesting that institutionalized opposition will be centered in the legislature. In presidential systems, significant opposition may occur between the executive and the legislature, depending on the powers of the presidency (e.g., whether it includes the power to appoint a cabinet or to conduct some affairs unilaterally) and the interactions between the electoral rules for the Parliament and the presidency. An electoral system that produces a government consisting of all the powerful players in the legislature is likely to weaken the presidency, reducing the president, in the limiting case, to a figurehead. If the president's party is a minority in the legislature, as is often the case in Brazil, then the president has to seek support from the majority (opposition) party to avoid governmental paralysis. This type of system tends closely to approximate a power-sharing type of arrangement. However, if the constitution confers substantial autonomous power on the president, as it does in the United States, the president may be an institutional figure to be reckoned with even if his or her party is a minority in the legislature. For presidential systems to be relatively close to the opposition end of the continuum in virtue of their presidentialism, then, either presidents must be institutionally powerful or there must be significant minority parties in the legislature with which they can ally themselves. As the latter is less predictably the case in PR systems, it is less predictably the case in presidential PR systems. Perhaps for this reason, observers have noticed a coincidence of presidential PR systems and power-sharing governments.[18]

Those who negotiate transitions to democracy bring different interests to the bargaining table that will lead them to assess various institutional outcomes differently. Negotiators representing a party that expects to be in the minority in the new democratic order should be expected to prefer a power-sharing arrangement in which they are guaranteed some of the spoils of office and veto powers on measures that affect their critical interests. Leaders of parties that expect to alternate in government and opposition in the new regime might reasonably take a more mixed view of things: when they are in government, they will want the power to govern, but when they are in opposition, they will want to be able to frustrate as much of the government's agenda as possible. Parties that anticipate being able to win a majority can be expected to prefer an oppositional model that will give them the power and authority to govern and to enact as much of their agenda as they can. Consequently, they should be expected to push for a majority system during the transition negotiations and to be more resistant than any of the other players to power sharing and other consociational arrangements.

The story of the South African transition partly belies these expectations. As anticipated, the NP insisted on a consociational outcome throughout the negotiations and eventually prevailed, making few concessions. On the other hand, the ANC, with its overwhelming grassroots support and its well-founded expectation that it would hold an absolute majority in the new Parliament, made concession after concession, eventually accepting constitutionally mandated power sharing

for the rest of the century at least almost without a whimper. Since this had been anathema to the ANC as late as mid-1992, and since most observers inside and outside South Africa seemed to think that the ANC had most of the cards, this outcome needs an explanation.

4. DEMOCRATIC OPPOSITION IN THE NEW SOUTH AFRICA

The 1993 constitution negotiated between the NP and the ANC, and adopted by the all-white South African Parliament as its final act in December 1993, appears close to the non-opposition extreme on our continuum. By acts of both omission and commission, its authors created an electoral system and institutional structure that contains no provision for an official opposition, let alone a shadow cabinet or access to information and resources for those who are not part of the new government. Instead, they mandated a government of national unity in which every player of consequence is expected to participate, have seats in the cabinet, and be bound by the doctrine of collective responsibility. This system is entrenched in the interim constitution.

The electoral law is a cornerstone of the new system. The constitutional negotiators replaced the old (British-inspired) system of single-member first-past-the-post constituencies with a lower house based on list system PR with half the 400 members elected at large and the other half from party lists in each of the nine regions that replace the old four provinces. The ninety-member senate has ten members from each region nominated by the parties represented in the provincial legislature who are also elected on the basis of list-system PR.[19]

If Rae is correct that for PR systems to function more like two-party systems a combination of small and medium-sized constituencies and high thresholds is needed, then the South African system—which has neither—does not fit the bill.[20] The brand of PR adopted in South Africa is especially inimical to the formation of parliamentary opposition because of how power is allocated in Parliament. Not only are seats in the National Assembly proportionately distributed, but so are cabinet portfolios. Any party that holds 20 seats in the National Assembly is entitled to cabinet portfolios in proportion to the number of seats it holds.[21] Thus the April 1994 elections, which gave the ANC 62.6 percent of the popular vote, the NP 20.4 percent, and the Inkatha Freedom Party (IFP) 10.5 percent, resulted in a parliamentary distribution of 252 ANC seats, 82 NP seats, and 43 IFP seats. The vote translated into a 27-member cabinet in which 18 were ANC, 6 were NP, and 3 were IFP.[22] Any party that wins at least 80 seats in Parliament—and, if none does, each of the two largest parties—is also entitled to designate an executive deputy president. This rule, which resulted in F. W. De Klerk's appointment to the post for the NP in 1994 along with Thabo Mbeki for the ANC, extends the principle of incorporating the powerful players throughout the executive branch. While the system overrepresents larger parties in the cabinet and the executive, it

ensures that all parties with substantial bases of electoral support are part of the government.

This system makes effective opposition to the government in Parliament virtually impossible. Powerful parliamentary players will be reluctant to give up the influence, perquisites, and patronage that accompany their positions as part of the government. No potentially effective parliamentary group exists outside the cabinet but inside Parliament to oppose government policy. Small wonder that as early as May 1994, Derek Keys, the NP minister of finance held over from the previous government, was publicly wondering how the doctrine of collective cabinet responsibility could be compatible with running against the ANC-led government's record in future elections.[23]

If effective political opposition cannot come from party competition, another place to look for it is on the back benches. Here, too, the rules seem to have been designed to preclude meaningful opposition. Chapter 4 of the constitution provides that any MP who ceases to be a member of his or her political party will also lose his or her seat, being replaced by someone else from the party list.[24] Depending on how the rules concerning the internal governance of parliamentary parties develop, this feature of the constitution could give governing party elites the most powerful whip system in the parliamentary world. If they can cause members to be threatened with expulsion from their parties, backbenchers will have no leverage of any kind in dealing with their party leaderships. Even if legislation is passed to curb leadership power, at a minimum the constitutional provision rules out the possibility of disgruntled backbenchers crossing the floor to join an opposition party to protest government action. Poignantly, the 1993 constitution rules out the sort of defiant act undertaken by Helen Suzman and eleven other MPs who in 1959 crossed the floor to form the Progressive Party when their United Party decided to play along with apartheid.[25]

We noted in section 3 that in certain circumstances a presidential system might promote institutionalized opposition. This is not so of the new South African presidency, which is institutionally weak by comparative standards and by comparison with the old South African presidency. The president is not elected independently, and he or she must select the cabinet proportionately from the major parliamentary parties. The president has few powers of appointment—as compared with the presidents of the United States, for example—and is required to exercise his or her major powers "in consultation with" the cabinet and the executive deputy presidents.[26] In short, the president must govern by consensus and with the support of most of the powerful parliamentary players.

Facilitating and institutionalizing loyal opposition was not a goal of those who wrote the 1993 constitution. They mandated a government of national unity. They designed a parliamentary and electoral structure that limits effective opposition politics, gives substantial amounts of political power to elites who represent

salient minorities, minimizes party competition and conflict between the executive and the legislature, and renders backbenchers impotent.[27] That this is not a recipe for a viable democratic order should be clear from our discussion in section 2. But why was it chosen?[28]

5. THE DYNAMICS OF TRANSITION NEGOTIATIONS

Democratic institutions are not always created by the sort of negotiations between government and opposition elites that took place in South Africa between 1991 and 1994. Huntington, who characterizes negotiated transitions as *transplacements*, contrasts them with *transformations*, when the elites in power take the lead in bringing about democracy (as in Spain, India, Hungary, and Brazil), *replacements*, when opposition groups take the lead in bringing about democracy (as in Portugal, Romania, and Argentina), and *interventions*, when democratic institutions are imposed by an outside power (as in Japan, West Germany, Grenada, and Panama).[29]

Transplacements should be expected to occur only when two conditions are present. First, dominant groups in both government and opposition must bargain with one another while recognizing that neither party is capable of determining the future unilaterally. Second, at critical junctures, reformers must appear to be stronger than standpatters in the government while moderates seem stronger than extremists in the opposition.[30] Elites who negotiate transitions are thus subject to constraints that arise both out of the negotiations and out of their relations with their own grassroots constituencies. The negotiating partners are concerned to maximize power along two dimensions. First, each tries to maximize power in relation to the other in the negotiations. Since both sides expect to lead parties that will compete in the new democratic regime, each has an interest in trying to get the upper hand in the negotiations to secure the result most favorable to its future political fortunes. Second, the negotiating partners (the reformers in the government and the moderates in the opposition) have incentives to maximize grassroots support for themselves (thereby continuing to marginalize standpatters and extremists) while causing their negotiating partner only to satisfice with respect to its grassroots supporters. Each wants the other to retain enough constituent support—but no more—to be able to deliver an agreement, and each seeks to achieve this result in an evolving context. This means that the negotiators are bound by three constraints as they move toward an agreement: time, their respective constituencies, and the changing demands of the other party.

Government Reformers

Reformers willing to begin liberalizing an authoritarian regime might come to the fore in the government for a variety of reasons. A list would include sanctions and other external pressures, fissures within their own ranks (perhaps as a result of the collapse of their legitimating ideology), the growth of a normative commit-

population but that the ANC won 62.6 percent of the vote. The IFP was the only major party that ran as an ethnic party in the election. Although Zulus comprise 29.2 percent of the population (38.5 percent of the black population), the IFP won only 10.5 percent of the vote, suggesting that almost two out of every three Zulus voted for other parties (the majority for the ANC). Even in the IFP stronghold of Kwazulu/Natal, the IFP managed to get only 50.3 percent of the vote (and that amid widespread charges of election fraud on the IFP's part), with the ANC winning 32.2 percent and the NP 11.2 percent. Both the ANC and the NP campaigned as non-racial parties throughout, collecting substantial numbers of votes from various population groups.

Despite the fact that whites comprise 13.1 percent of the population, the NP won 20.4 percent of the vote, indicating that it picked up millions of votes from other population groups. The majority of both the "coloured" and Indian vote went to the NP,[81] and 14 percent of the NP vote came from black South Africans. Although this translates into only 3-4 percent of the total black vote, it is more than three times the vote garnered by the ethnically exclusive PAC. Even the white vote did not split predictably along ethnic lines. Indeed, the vast majority of the white Afrikaner vote went to the NP despite the presence of a well-organized Afrikaner ethnic party. White Afrikaners comprise 7.5 percent of the population (57.5 percent of the white population), yet the Afrikaner separatist Freedom Front won 2.2 percent of the vote, indicating that three out of four white Afrikaners voted for other parties (the great majority for the NP).[82]

8. IMPLICATIONS FOR THE PERMANENT CONSTITUTION

How troubled should democrats be that the "democratic route to democracy" fails to generate some of the institutions that are essential to a viable democratic order? In reflecting on this, we should begin by wondering just how democratic a negotiated transition really is. After all, in South Africa the CODESA roundtable talks, although genuinely inclusive and consultative of all parties, were notable failures. They were followed by a classic elite pact, for the most part secretly negotiated, between the two most powerful players. This set the terms of the new constitution in all important particulars. Other political players were told to like it or lump it, and a group such as the IFP was given attention only to the extent that the principals thought it had the power to disrupt the negotiations. Indeed, co-opting or marginalizing potential opposition to the emerging agreement at several critical junctures in the negotiations was necessary for their success.

In response, it might be argued that however much negotiated transitions impose results from above, they do so less than do interventions or transformations. There is truth to this, but it raises the possibility that negotiated transitions might combine the worst of both worlds from the standpoint of democratic institutional design. On the one hand, as an elite pact agreed to by the most powerful principals, it is not really democratic. On the other hand, the institutions

that are imposed are not chosen for their democratic durability. In transplacements, the negotiating principals are usually jockeying for position in the next government at the same time as they are designing the new institutional rules. This means that they respond to imperatives generated by both the internal logic of the negotiations and future electoral politics rather than try to design viable democratic institutions. To be sure, nothing in the logic of transformations, replacements, or interventions requires that institutions will be better designed from the standpoint of democratic durability than they will with transplacements of the South African kind, but at least the principals do not have incentives to design them poorly.

A democratic constitutional order is a public good; it must be jointly supplied, and no one can be excluded from it. That a public good is not well supplied through bilateral negotiations will not surprise economists. Not only may it be misleading, then, to think of the negotiated transition path as a democratic route to democracy, it may be misguided to think of it as an effective path to sustainable democracy. From the standpoint of a public-goods analysis, the problem with negotiated transitions is not that the institutions are imposed from above but rather that they are not imposed in a sufficiently thoroughgoing fashion. Here we might think of transition negotiators as confronting a quasi prisoner's dilemma: the parties converge on a suboptimal outcome in response to the immediate incentives that they face. They design an order that they are likely to come to regret having designed, and perhaps they even know this in advance. But the logic of negotiated settlements holds them hostage to this outcome.

One way to get constitutional designers who are also future players to agree on a system of rules that promotes alternation in power is if they are uncertain about everyone's future electoral prospects. Each then has a reason to calculate that if they fail to prevail in the first election, then they might prevail in the next, or the next, or the next. For this reason, uncertainty gives the players incentives to create, and to continue to support, democratic opposition institutions rather than try to topple the regime if they fail to get their way initially.[83] From this point of view, the difficulty with negotiated transitions is that they are devices for minimizing unpredictibility. Constrained by their grassroots supporters, by standpatters and radicals, and by the escalating costs of failure to agree, the negotiators settle on the system that is most likely to guarantee them a presence and as much power in the new government as possible. Other considerations are thrown to the wind all too easily.[84]

If negotiated transitions are neither notably democratic nor effective means for creating viable democratic institutions, this does not necessarily mean that they are a bad thing. They may have other virtues, such as minimizing bloodshed, and in many circumstances there may be no other way to get an authoritarian regime out of power. It is difficult to know whether this is the case in any given situation. Sometimes the authoritarian regime will be weaker than everyone believes it is;

the collapse of the Soviet Union, which took the whole world by surprise, is an incontrovertible reminder of that possibility. We will never know whether the apartheid regime in South Africa would similarly have imploded had it not been for the decision by reformers in the NP and moderates in the ANC to effect a negotiated settlement—or had their efforts failed. Nor can we know whether a viable democracy would have followed a replacement in South Africa had the apartheid regime collapsed.

Acknowledging these imponderables should not lead us to misunderstand what did occur or why it happened. The 1993 South African constitution is an interim one; the new Parliament must write and approve a permanent constitution within two years. A greater appreciation of the weaknesses of the present document might lead those who write the new constitution to improve it. This is a tall order. As the old saying about the most long-lived, but "provisional," 1875 constitution in the Third French Republic suggests, "C'est seul le provisoire qui dure." Supposedly interim political arrangements have a way of hanging on for decades, as they have at different times in West Germany, Ireland, Israel, France, and elsewhere. They often incorporate hard-won compromises, and the specter of revisiting their basic terms can seem too problematic—if not potentially explosive—to too many players to be worth attempting. This is not inevitable. Indeed, if the analysis presented here is correct, then the decisive feature of the transition negotiations that led to power sharing—the outgoing government's monopoly control of the military—disappears once the transition has occurred, creating a new reality subject to new constraints. If a coalition that has enough power to alter the system emerges in the new Parliament, as in Poland after the 1989 elections, then power sharing may begin to evolve in more democratic directions.

However, it is often understandably hard to get politicians to agree to alter the system of rules that has put them into power. Supermajority requirements for constitutional reform usually necessitate high levels of consensus, effectively entrenching transitional arrangements.[85] Fear of conflict may also play a role in the durability of transitional power-sharing arrangements. When the pre-democratic history has been characterized by violence and warfare, people may readily accept the notion that opposition is just too dangerous to allow and that consensus will unify the country and bring peace. Angell, for instance, describes the evolution of the ideology of consensus in Chile: "What was originally a tactical agreement amongst the parties of the then opposition . . . soon became a strategy, but has now become a dominant ideology."[86] In South Africa, too, the government of national unity has an emotional resonance that speaks to healing the racist divisions of apartheid. As Lijphart notes, there seems to be a "general expectation" among the principal players "that the final constitution will bear a strong resemblance to the interim constitution."[87]

Lijphart celebrates South Africa's new consociational institutions as "just about the best that could have been designed," urging that they be replicated in

the final constitution.[88] This is wrongheaded advice. The power-sharing arrangement may have been essential to achieve a negotiated end to the apartheid order, and it may also head off open conflict in the short term. But those who care about democracy in South Africa must remember that constitutional arrangements are tested in times of crisis, not political honeymoons, and think about their operation in the future.[89] Unless institutions are put in place that can give dissatisfaction and opposition meaningful institutional expression, it seems reasonable to assume that as the government of national unity begins to lose popularity, the democratic constitutional settlement, rather than that government, will begin to become vulnerable to separatist and antidemocratic forces.[90] This is not helped by the fact that groups such as the IFP, which stand to benefit most from the failure of the new order, have seats in the cabinet. An indication that the government's popularity may begin to decline sooner rather than later is that the much anticipated postelection inflow of Western capital has not materialized, perhaps because investors and hedge fund managers sense from the Government of National Unity's incapacity to act that the real politics has yet to begin.[91]

We contend that the ANC should push hard in the phase 2 constitutional negotiations to diminish the power-sharing dimensions in the constitution, but not in ways that stifle the organized and effective expression of opposition to their policies. In return for a more majoritarian system, however, its leaders should be prepared to give up the parliamentary rules that tie backbenchers to party leaderships. True, this will mean coping with more fractious and disagreeable backbenchers, and some groups will likely hive off and form new parties. But if the ANC leaders want the NP to give up the predictability that comes with power sharing, then they must themselves be prepared to compete for grassroots support with the power of their ideas rather than rely on coercive institutional devices. Tedious as it might often be to deal with meaningful opposition, it gives rise to the complex competition that is the lifeblood of democratic politics.

The NP leaders should also think about their interests in a less myopic fashion. They should look not only at the present distribution of parties and the next election, but also at South Africa's underlying political dynamics. Caution on the part of NP leaders is understandable, but they also need to understand that the way to step over a crevasse is not to tiptoe into the middle of it. They need to realize that divergent political forces cannot be held together artificially and that attempts to do so will likely destroy the mechanisms that proponents hope will do the holding. With the best of intentions, their negotiators are fighting the wrong battle by seeking to entrench power sharing in the permanent constitution.[92] Instead, they should be thinking about ways to make the political system genuinely competitive so that power sharing will no longer appear to be necessary.

The answer lies in getting rid of the mechanisms that currently prevent the breakup of the ANC into several parties. If the rules tying backbenchers to their

party leaderships are discarded, it is hard to see how this could not happen to what is, after all, an umbrella organization consisting of a great diversity of groups that were held together by their shared opposition to apartheid. This has been the result with other liberation movements that have come to power, and once the strains of governing bring the latent divisions within the ANC to the fore, there is no reason to think the South African experience will be different. Indeed, if Rae is right that PR with a combination of low thresholds and large constituencies promotes party fragmentation, then this outcome is all the more likely in South Africa, which has both.[93] Bearing this in mind, the NP should be prepared to trade entrenched power sharing for the rules that permit the ANC leaders to hold their party together artificially. In the medium term, this holds out the possibility of voluntary coalition politics of the sort that is routine in countries such as Israel and much of Europe, where governments and oppositions can form and reform as politics changes on the ground.

Of course, there are no guarantees, but that, as we have noted, is in the nature of what makes democracy survive. The guarantee of power sharing is only a guarantee of one thing: that real democratic politics cannot get started and that those who do not perceive their interests as being served by the government of national unity will have no incentive to remain committed to the new constitutional order. The NP would do better to worry less about worthless paper guarantees, see institutionalized unpredictability as an opportunity, and focus on building new non-white grassroots constituencies so that they will be better placed to take advantage of a fluid and unpredictable future. Opening local offices in Soweto and working on people's rent problems will do more for their electoral prospects in 1999 and beyond than will insisting on power sharing now.

That the power-sharing arrangement embedded in the interim constitution is so extreme might turn out to be an advantage in revealing that this "enforced coalition between thoroughly incompatible partners"[94] does not provide a viable basis for democracy in the longer term. The first indication of the unworkablity of the new system became clear as early as July 1994. Finance Minister Keys resigned and President Mandela decided to replace him with Chris Liebenberg, a political independent. To achieve this without upsetting the power-sharing formula for the distribution of cabinet portfolios, it was necessary for the Parliament to amend the constitution and for Mandela to give the NP an additional cabinet portfolio.[95] Perhaps this was an early indication that the system will prove so unworkable that there will be no alternative but to refashion it. Once the political honeymoon for the new government is over, the difficulties of governing by constitutional amendment should become manifest. It is hoped that when this occurs, both the will and the capacity will be found in Parliament to create a system that is at once more workable and democratic.